



Harbours Act (Northern Ireland) 1970 ^{F1}

CHAPTER 1

HARBOURS ACT (NORTHERN IRELAND) 1970

PART I

HARBOUR DEVELOPMENT AND HARBOUR CHARGES

HARBOUR ORDERS

- 1 Harbour orders.

EXCHEQUER ASSISTANCE FOR EXECUTION OF HARBOUR WORKS, &c.

- 2 Loans for execution of harbour works, etc.
- 3 Grants for execution of harbour works, &c.
- 4 Maximum amount of loans and grants under sections 2 and 3.
- 4A Grants payable to certain harbour authorities in relation to expenses

HARBOUR CHARGES

- 5 Repeal of provisions limiting discretion of certain harbour authorities as to charges chargeable by them.
- 6 Availability of copies of lists of certain charges.
- 7 Right of objection to ship, passenger and goods dues.
- 8 Special provisions with respect to certain aviation charges.
- 9 Repeal of certain enactments relating to harbour charges.

PART II

HARBOURS VESTED IN LOCAL AUTHORITIES

- 10 Powers of authorities.
- 11 Tidal works.
- 12 Charges and leases by authorities.
- 13 Application of provisions of Harbours, Docks and Piers Clauses Act.
- 14 Byelaws.
- 15 Harbour masters.
- 16 Execution of certain operations in pursuance of orders of the Ministry.
- 17 Discontinuation of a harbour's maintenance.
- 18 Suspension of use of harbours.
S.19 rep. by 1972 NI 16
- 20 Order of application of authority's revenue.
- 21 Exercise of power to grant leases and exclusive rights.
- 22 Interpretation (Part II).

PART III

MISCELLANEOUS

POWERS OF HARBOUR AUTHORITIES

- 23 Power of harbour authorities to provide inland clearance depots.
- 24 Power of harbour authorities to acquire a harbour business or shares in a harbour business.
- 25 Miscellaneous powers of harbour authorities.
- 26 Compulsory acquisition of land by harbour authorities.
- 27 Water supplies.

FURNISHING OF INFORMATION

- 28 Power of Ministry to obtain information and forecasts.
- 29 Information in relation to grants and loans.

FINANCIAL PROVISIONS

- 30 Accounts, &c., relating to harbour authorities.
- 31 Borrowing by harbour authorities.
- 32 Over-riding of limits on borrowing powers of harbour authorities.
- 33 Miscellaneous financial provisions.
S.34, with Schedule 5, effects amendments

MISCELLANEOUS

- S.35 rep. by 1971 c.13 (NI)
- 36 Transitional provisions and repeals.
- 37 Paragraph 23 of the electronic communications code (which provides a...

- 38 Interpretation.
- 39 Power to amend Acts of local application.
- 40 Saving for private Bills.
- 41 Short title.

SCHEDULES

SCHEDULE 1 — OBJECTS FOR WHOSE ACHIEVEMENT HARBOUR ORDERS MAY BE MADE

- 1 Establishing a harbour authority and conferring functions on it.
- 2 Winding-up and dissolving a harbour authority.
- 3 Transferring functions from one harbour authority to another or to a body constituted by or...
- 4 Reconstituting a harbour authority or altering its constitution.
- 5 Conferring functions on a harbour authority or varying or abolishing the functions of an authority.
- 6 Abandoning a harbour.
- 7 Regulating the procedure of a harbour authority or of any committee of a harbour authority.
- 8 Settling or varying the limits within which a harbour authority is to exercise its functions.
- 9 Controlling the movement of ships, in the interests of safety and the uninterrupted movement of...
- 10 Constructing, reconstructing, improving, maintaining or managing a harbour.
- 11 Marking or lighting a harbour, raising wrecks in a harbour or otherwise making safe the...
- 12 Regulating the carrying out by any person of harbour operations or any activities on harbour...
- 13 Authorising the making of byelaws with respect to any matter.
- 14 Amending or repealing any statutory provision of local application affecting a harbour.
- 15 Securing the welfare of persons employed by a harbour authority and empowering the provision of...

SCHEDULE 2 — FURTHER PROVISIONS RELATING TO HARBOUR ORDERS

PART I — PROVISIONS WHICH HARBOUR ORDERS MAY CONTAIN

- 1 Provisions transferring property from one harbour authority to another or from a person carrying on...
- 2 Provisions transferring persons in the employment of a harbour authority to the employment of another...
- 3 Provisions dissolving any body of constables maintained by a harbour authority and with respect to...
- 4 Penal provisions.
- 5 Provisions for the settlement of disputes.

PART II — PROVISIONS FOR CONTROLLING SHIP MOVEMENTS

- 1 The designation of areas, routes or channels which ships are to use, or refrain from...
- 2 The person who may give directions under the order in relation to the movement of...

Changes to legislation: There are currently no known outstanding effects for the Harbours Act (Northern Ireland) 1970. (See end of Document for details)

- 3 The equipment by means of which provisions of an order relating to the movement of...
- 4 The equipment which a ship must carry in order to enter the harbour when visibility...
- 5 The conferring of powers of entry and inspection in relation to premises, vehicles, ships or...
- 6 The payment of fees in connection with the inspection or testing of any such equipment...
- 7 The application, subject to modifications, of section 191 of the Merchant Shipping Act 1995 to...

SCHEDULE 3 — CONDITIONS RELATING TO TIDAL WORKS

- 1 (1) Where a local harbour authority constructs, alters or extends any tidal work in contravention...
- 2 (1) Where a local harbour authority abandons any tidal work, or allows it to fall...
- 3 (1) Where any tidal work in the harbour of a local harbour authority is damaged...
- 4 (1) An appropriate department may cause a survey and examination to be made— (a) of...
- 5 (1) A local harbour authority shall, while a tidal work is being constructed, altered or...
- 6 In this Schedule “an appropriate department” means the Board of Trade or the Ministry.

SCHEDULE 4 — MODIFICATIONS OF SECTION 22(2) OF AND SCHEDULE 2 TO THE LOCAL GOVERNMENT ACT (NORTHERN IRELAND) 1934 FOR THE PURPOSES OF SECTION 26

- 1 References to a vesting order made under section 22 of the Local Government Act (Northern...
- 2 References to the Ministry of Development or to a local authority shall be construed as...
- 3 Subject to paragraph 1, the references to section 22 of, or Schedule 2 to, that...
- 4 In paragraph 27 of that Schedule, the reference to the area of a local authority...
- 5 (1) In paragraph 28 of that Schedule, for the definition of “land” there shall be...
- 6 Where an application is made to the Ministry for a vesting order in respect of...

— Schedule 5—Amendments

— Schedule 6—Repeals

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